

M/S Nufarm Frozens Pvt Ltd And Another v. State Of U.P. And 2 Others

High Court of Judicature at Allahabad · Division Bench · 24 November 2023 · 2023:AHC:223248-DB · WRIT - C No. - 34842 of 2023 · **Writ disposed; paragraph 6.5 objection to be decided**

HEADNOTE

A writ for revision of an industrial bill charged at the urban tariff instead of the rural tariff, with refund or adjustment and interest, was disposed of without any opinion on the merits. With consent, the consumer was left to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within ten days, to be decided in accordance with law after hearing.

FACTUAL SUMMARY

M/s Nufarm Frozens Pvt Ltd held industrial connection Account No. 712100371928 (HV-2). From April 2017 to May 2023 the licensee billed it as ST/HV 21T (urban tariff) instead of ST/HV 26T (rural tariff). The firm sought mandamus to revise those bills, refund or adjust the excess with 18% interest, pay 4.5% interest on the security deposit for April 2017 to December 2021, and decide its representation of 1 July 2023. The distribution corporation said an objection could be filed and decided according to law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill relegated to a paragraph 6.5 objection

HOLDING

A writ seeking revision of bills raised under supply type ST/HV 21T instead of ST/HV 26T, refund or adjustment of the excess with interest, and interest on the security deposit is disposed of without any opinion on the merits. With the consent of counsel, the consumer may submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within ten days, with a certified copy of the order. If filed in time, respondent No. 3 shall decide it in accordance with law after a reasonable opportunity of hearing. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench did not revise the bill or direct a refund in writ jurisdiction. With consent it disposed of the petition by liberty to file a paragraph 6.5 objection before respondent No. 3. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The claim that the HV-2 connection was billed at the urban tariff (ST/HV 21T) instead of the rural tariff (ST/HV 26T) from April 2017 to May 2023, with consequential excess and interest, was left to be decided as an objection under paragraph 6.5. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION WAS CHARGEABLE AT RURAL TARIFF ST/HV 26T RATHER THAN URBAN TARIFF ST/HV 21T, AND WHETHER ANY EXCESS, 18% INTEREST, OR 4.5% INTEREST ON THE SECURITY DEPOSIT IS PAYABLE

No opinion on the merits. An objection filed within ten days is to be decided by respondent No. 3 in accordance with law. ¶ 4

